

Open Session: July 6, 2026

3:00 p.m. – Board of Commissioners Conference Room

Commissioners Ron A. Smith(excused), Colene M. Martin, and Gary L. Richardson; Nikole Guzman, Recorder

Commissioner Vice Chair Colene M. Martin called the joint meeting to order at 3:00 p.m. Commissioner Martin announced that Chair Ron A. Smith was unable to attend due to a previously scheduled commitment.

1. Open Session

a. Due Process Hearing to consider the dismissal or discipline of, or to hear complaints or charges brought against a public officer, employee, staff member or individual agent who requests an open hearing: Human Resources Director

The Board convened in Open Session to consider the dismissal or discipline of, or to hear complaints or charges brought against a public officer, employee, staff member or individual agent who does not request an open hearing: Human Resources Director– ORS 192.660(2)(b).

Vice Chair Colene M. Martin called for Executive Session at 3:01 p.m. Minutes filed separately.

Additional Attendees: Sean Ray, Esq., Matt Eide, Finance Director

2. Executive Session

a. Due Process Hearing to consider the dismissal or discipline of, or to hear complaints or charges brought against a public officer, employee, staff member or individual agent who does not request an open hearing: Human Resources Director– ORS 192.660(2)(b)

Executive Session adjourned at 3:13 p.m.

3. Open Session Cont'd

a. Consideration and decision regarding the dismissal or discipline of, or to hear complaints or charges brought against a public officer, employee, staff member or individual agent: Human Resources Director

Vice Chair Martin reconvened Open Session pursuant to Michelle Shaw's request that the due process hearing be conducted publicly. Commissioner Martin explained that the purpose of the hearing was to provide notice of concerns identified by the Board regarding Ms. Shaw's performance as Human Resources Director and to provide her with a meaningful opportunity to respond before the Board determined how to proceed. Commissioner Martin emphasized that no conclusions regarding Ms. Shaw's continued employment had been reached and that the purpose of the hearing was to ensure procedural due process.

Commissioner Martin outlined the Board's concerns regarding the administration of workplace investigations, including the absence of a consistently structured investigative process, extended timelines for completing investigations involving employees placed on paid administrative leave, incomplete investigative work product, and delays in providing information to outside employment counsel. Commissioners expressed concern that prolonged investigations affected departmental operations, delayed personnel decisions, and created uncertainty for employees and management.

Ms. Shaw described her standard investigative process, explaining that investigations begin with interviews of complainants, supervisors, and witnesses and include organization of investigative materials within the Human Resources shared drive. She explained that one investigation involved multiple conflicts of interest, which

prompted her to retain outside employment counsel to assist with the investigation. Ms. Shaw stated that staffing limitations, changes in Board membership, ongoing information received throughout the investigation, and reliance upon outside counsel contributed to the overall timeline.

Commissioners acknowledged the challenges presented by the circumstances but expressed concern that investigations remained unresolved for several months despite repeated requests that they be completed promptly. Commissioner Richardson noted that outside reviewers had advised that one investigation was incomplete and required additional work before it could be relied upon. Commissioner Martin further discussed the operational impact resulting from prolonged vacancies, interim management assignments, and reduced employee morale during the pendency of the investigations. Ms. Shaw responded that County morale had been affected by organizational changes occurring over several years and did not believe the investigations alone were responsible for those concerns.

The Board next discussed concerns regarding the accuracy and completeness of personnel information presented to Commissioners. Topics included securing employee offices following placement on administrative leave, communication regarding a long-standing workers' compensation claim, investigative information not presented to the Board, personnel requisitions, compensation recommendations, and application of County compensation practices.

Commissioner Richardson explained that offices associated with employees placed on administrative leave had not initially been secured, raising concerns regarding preservation of evidence and integrity of investigations. Ms. Shaw responded that she had not previously been trained regarding securing employee offices as part of an investigation and believed existing County policies addressed disabling building and computer access but did not specifically address office inventories or securing physical workspaces. Commissioners stated they expected the Human Resources Director to recognize those investigative responsibilities as part of the position.

Commissioners also discussed information presented during a Budget Committee meeting concerning a historical workers' compensation claim. Commissioner Martin stated that questions raised during the public meeting required additional research by Commissioners before the matter could be fully explained. Ms. Shaw responded that she had contacted SAIF and CIS seeking information regarding the historical claim and believed she had taken reasonable steps to obtain available records. Commissioners acknowledged those efforts but expressed concern regarding the timeliness of follow-up and communication with the Board.

Discussion also included investigative materials previously submitted by department management, personnel requisitions requiring correction before Board approval, and several compensation-related recommendations that required additional review before presentation to the Board. Commissioners emphasized their expectation that Human Resources recommendations presented for Board consideration be thoroughly researched and administratively complete. Ms. Shaw acknowledged that occasional errors had occurred but stated that Human Resources strives to provide accurate information and correct any mistakes when identified.

Commissioners next discussed several assignments they believed had not been completed within expected timeframes. Discussion included a workers' compensation settlement agreement executed by an employee but

not presented to the Board before Ms. Shaw was placed on administrative leave, requiring additional legal review before completion. Ms. Shaw explained that she had followed guidance received from outside employment counsel regarding execution of the agreement and believed the timing of Board approval was consistent with those instructions.

The Board also discussed administration of collective bargaining negotiations. Commissioner Martin stated that negotiations should generally begin earlier in the calendar year and expressed concern regarding delays in scheduling bargaining sessions and communicating with bargaining units. Ms. Shaw responded that she had communicated with bargaining representatives, coordinated with outside employment counsel, developed proposed contract language, and initiated negotiations with multiple bargaining units. She further explained that changes in outside legal counsel and ongoing negotiations contributed to scheduling delays.

Commissioners expressed concern that Human Resources relied extensively upon outside attorneys to organize negotiations rather than independently advancing the bargaining process and believed greater preparation and internal leadership were expected from the Human Resources Director. Commissioner Richardson emphasized the importance of establishing strategic bargaining objectives before formal negotiations begin and ensuring the Board receives timely recommendations throughout the negotiation process.

The Board discussed concerns regarding the handling and distribution of confidential personnel and medical information. Commissioners referenced an email distributed to multiple recipients that included sensitive medical information relating to a County employee and questioned whether the information had been shared more broadly than necessary. Ms. Shaw stated that she did not recall the specific communication but agreed that confidential medical information should generally be disclosed only when necessary for employment administration. Commissioners emphasized the importance of protecting confidential personnel information and maintaining appropriate limitations on distribution of sensitive records. Additional discussion occurred regarding disclosure of identifying information during previous public meetings and the Board's expectation that personnel matters remain confidential whenever possible.

Following completion of the discussion, Commissioners asked Ms. Shaw whether she wished to provide any additional information or clarification regarding the concerns presented. Ms. Shaw declined to add further comments.

Commissioner Martin thanked Ms. Shaw for participating in the due process hearing and advised that the Board would consider the information presented before determining the appropriate course of action. Commissioners explained that, consistent with County personnel policy, no employment decision would be made during the hearing and that any future action would occur at a subsequent meeting following the required waiting period. No formal action was taken.

The meeting adjourned at 4:14 p.m.